

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 6/23/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
8	30-2026-01567697 Kelly v. Solomonian	The Court has read and considered the Defendants' Motion to Strike Complaint (ROA 36), Declarations in Support of the Motion (ROA 19, 21, 25, 27, 30 & 32) the Complaint (ROA 2) Plaintiff's Opposition (ROA 40) and Defendant's Reply to Opposition (ROA 42). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 13, 15 & 17). California Civil Code § 827 allows for landlords to unilaterally change the terms of a month-to-month tenancy or fulfill statutory disclosure requirements by providing proper written notice. The legal requirement is on the landlord to provide and serve the notice, not on the tenant to agree or sign it. Whether or not the Plaintiff under Civil Code § 827 served notice of the Tenant Protection Act of 2019 required language of exemption is an issue for factual dispute to be determined at trial. The Court DENIES the Motion to Strike Complaint.

		California Code of Civil Procedure §435(b)(1) requires a motion to strike to be filed within the 10 business days of service of the summons and complaint. Under California Code of Civil Procedure §1014, a motion to strike is an appearance with the court; the Defendants are precluded from filing a motion to quash service following the filing of a Motion to Strike. Furthermore, California Code of Civil Procedure §435(d) does not extend time to file a demurrer. Therefore, because it has been well past the 10 business days following service of the Summons and Complaint on May 23, 2026, the Defendants are ordered to file an Answer within 5 business days. Plaintiff is ordered to serve notice of the Court's ruling.
9	30-2026-01562039 Liwe Shen As Trustee of the Shen Trust v. Espinosa	This is an evidentiary hearing.